

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

NAIRI ARABATYAN,

Petitioner

VS.

GARY ARABATYAN,

Respondent

) Case Number: FDI-23-798069

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: ATTORNEY'S FEES AND COSTS. COMPLIANCE WITH ORDERS
AND FIDUCIARY DUTIES FOR BUS. VAL.

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Nairi Arabatyan (Mother) and Respondent Gary Arabatyan (Father) married on
5/20/2026 and separated on 5/18/2023, for a marriage of 17 years. The parties have four children,
Raffi (DOB: 7/4/2007, deceased), Zareh (DOB: 7/20/2009, age 16), Areni (DOB: 3/28/2012, age
14), and Gayane (DOB: 3/17/2024, age 12).
- 2) The parties stipulated to a 3-year Domestic Violence Restraining Order filed on 1/17/2024 in
related Case No. FDV-23-816883. The restraining order protects Mother and the parties' four
children. The restraining order expires on 1/24/2027.
- 3) There has been no Judgment entered in this matter to date.
- 4) On 7/24/2025, a Stipulation and Order Re: Custody, Parenting, Family Support, Arrears,
Contempt, and Motion to Compel was filed. This Stipulation and Order provides in relevant part:
 - a. For the period 8/1/2025 through 12/31/2025, Father shall pay Mother \$15,000 per month
in family support.

- b. For the period 1/1/2026 through 12/31/2026, Father shall pay Mother \$16,000 per month in family support.
- c. Father shall pay bonus support commencing 1/1/2027.
- d. The parties shall meet and confer on or before 9/15/2026 to address support going forward from 1/1/2027.
- e. The children shall continue to be enrolled in private school through June 2027. Commencing 8/1/2025, Father shall pay 100% of the school tuition for all children through June 2026. Thereafter, the parties shall share private school tuition equally through 2027.
- f. The parties shall share equally the children's uncovered healthcare costs per the instructions in Family Law Form FL-192.
- g. The parties shall share equally "the children's existing extracurricular activities, sports, and camps and new agreed-upon activities."
- h. Each party shall be responsible for and pay his and her respective attorney's fees through July 2025.
- i. The parties shall exchange global settlement proposals 10 days prior to an in-person meeting. If no agreement is reached, the parties shall request further assistance from the court for a judicial settlement conference with Judge Luna and if not available, appoint an agreed-upon mediator within 14 days of the in-person meeting. If the parties are unable to appoint an agreed-upon mediator, the mediator shall be chosen by agreement of the parties attorneys of record within 5 days thereafter and each party shall pay 50% of the mediator's fees regardless of the result of mediation. If no agreement is reached in mediation, the parties can proceed through litigation through the court.

5) Now on for hearing is Mother's Request for Order filed 2/2/2026. Mother asks the Court to order:

- a. Under the Stipulation and Order filed on 9/6/2023 in related Case No. FDV-23-816883, Father was ordered "pending the October 18, 2023 hearing and further court order, commencing September 2, 2023" to pay for "property taxes" and "ongoing medical expenses." Mother states Father failed to pay the second installment of property taxes in 2023 for the San Francisco property in the amount of \$10,855.95 plus \$4,055.79 in

1 accrued penalties / fees for a total of \$14,911.74 plus any additional accrued penalties /
2 fees. Mother states she contributed \$5,000 towards this delinquent tax bill. Mother states
3 Father should be ordered to pay \$9,911.74 (plus any additional accrued penalties / fees)
4 and to reimburse her \$5,000.

5 b. Mother states Father failed to pay for at least three installments of property taxes for the
6 Emeryville property for the period 2023 – 2025 in the amount of \$19,315 and that Father
7 should be ordered to pay for 100% of the delinquent property taxes plus accrued penalties
8 / fees. Mother also states that Father has collected all rental income for the Emeryville
9 property and Father should be ordered to reimburse her 50% of the net rental income for
10 the Emeryville property.

11 c. Mother also states that Father owes her 100% of the \$4,425 she paid for the children's
12 dental bills for 9/1/2023 – 8/15/2024.

13 d. Mother states the Stipulation and Order filed on 9/6/2023 requires Father to pay for "all
14 other expenses" not allocated to Mother. Mother states Father owes her 100% of Raffi's
15 funeral and mortuary costs which she paid in the amount of \$27,988 paid during the
16 period 9/1/2023 – 8/15/2024. Mother also states Father owes her \$7,968 for the following
17 amounts she paid during this same time period: Homenetmen Sports (\$825); Hye Camp
18 (\$ 1,913); Hye Em Yes Camp (\$ 1,000), AYC Camp (\$2,150); CYO Sports (\$900);
19 Areni's outdoor education (\$405), Zareh's Running Coach (\$450); and La Garza Sports
20 Camp (\$325).

21 e. Mother also asks the Court to order Father to reimburse her 100% of the \$8,277 she paid
22 for the San Francisco residence between 5/18/2023 – 9/1/2023: replaced water heater
23 (\$2,650); replaced broken screen door (\$628); plumbing faucet (\$340); Gutter/Roof
24 cleaning (\$600); Roof Repair (\$2,059); Broken washer replacement (\$ 1,460); Plumber
25 bathroom sink (\$350); and Gardener (\$190).

26 f. Mother also asks the Court to order Father to reimburse her for expenses she paid for
27 herself and the children between 5/18/2023 – 9/1/2023: Groceries and household supplies
28 (\$3,514); Hot lunch and school fees \$698; Zareh's School Computer (\$ 1,999); Raffi's
29 Caregiver (\$683); Kids beds (\$ 1,794) and drawers (\$ 1,580); Prescription medication (\$

172); PGAE (\$475); Water (\$99); Recology (\$94); ATILT (\$91); Gas (\$974); in the total amount of \$ 12,173.

- g. Under the Findings and Order After Hearing filed 9/24/2024, Father to reimburse Mother 50% of the children's uninsured healthcare costs which Mother paid from 8/14/2024 to present, including UCSF for Areni (\$60), children's dental bills (\$2,697), and Areni's orthodontic bill (\$7,000). This amounts to \$9,757 and Mother states Father owes her \$4,878.50.
- h. Father to reimburse Mother for the following additional expenses for the children which Mother states she paid from 8/15/2024 to the present: Areni Yosemite Field Trip (\$850); ACYO Western Diocese tournament (\$465); Homenetmen sports (\$ 1,125); Hye Camp (\$ 1,955); AYC Camp (\$2,025); CYO Sports (\$ 1,350); Areni Volleyball (\$4,152); Areni Dance (\$ 1,435); Gayane Dance (\$975), Riordan Summer Camp (\$412); Marin Rowing Summer Camp (\$ 1,080); Gayane's Outdoor Education Trip (\$430); Dance Summer Camp (\$493); Zareh's Driver Permit Fees (\$45) and Driver's Training (\$480), in the total amount of \$17,272. Mother states Father owes her \$8,636.
- i. Mother states Father owes her \$527.50 for the \$1,088.50 dental bill that she paid in January 2026 for all three children.
- j. Mother also requests that Father pay her \$401.50 for 50% of the following expenses: \$650 to add the parties' son to Mother's auto insurance for 6 months plus \$325 to repair Zareh's school laptop.
- k. Mother states that Father failed to set up automatic recurring payments for the monthly support payments as required by the 7/24/2025 Stipulation and Order and she requests an order enforcing this requirement.
- l. Father to exchange updated disclosures and provide financial information as required by paragraph 13 of the 7/24/2025 Order
- m. Father to comply with the requirement to exchange global settlement proposals under paragraph 13 of the 7/24/2025 Order
- n. The parties to meet and confer as required under paragraph 13 of the 7/24/2025 Order.

- o. The parties to set a Judicial Settlement Conference with Commissioner Luna or, if unavailable, the appointment of an agreed-upon mediator as required under paragraph 13 of the 7/24/2025 Order.
 - p. Father to advance \$100,000 for Mother's attorney's fees and costs and \$20,000 towards Mother's forensic accountant's fees/costs (to evaluate his dental practice) under Family Code sections 2030 and 2032.
 - q. Father to comply with his fiduciary duties by providing all business records and information required by Mother's forensic accountant to evaluate his dental practice.
 - r. Father to pay for the fees Mother has incurred due to his obstreperous conduct, failure to cooperate, and forcing Mother to file these requests for Father to comply with Court orders in the amount of \$14,021 as a sanction under Family Code sections 271 and 2107(c), and/or under Family Code sections 2030 and 2032.
 - 6) On 2/2/2026, Mother filed a Points and Authorities in Support of her Request for Order.
 - 7) On 2/2/2026, Mother's attorney filed a declaration in support of Mother's request for a fee award and sanctions.
 - 8) On 2/2/2026, Mother filed an Income and Expense Declaration.
 - 9) On 3/27/2026, Father filed a Responsive Declaration asking the Court to:
 - a. Deny unsupported reimbursement claims;
 - b. Deny or substantially reduce attorney fees and forensic accountant expenses;
 - c. Deny the \$14,021 meet-and-confer claim;
 - d. Modify the child support payment schedule to align with my pay periods and feasible payment methods;
 - e. Clarify responsibility for car insurance and computer expenses, or deny reimbursement;
 - f. Consider my incurred expenses for the memorial service separately from Mother's funeral arrangements, noting that I was not part of Petitioner's funeral;
 - g. Grant a brief continuance to allow me to obtain new counsel and fully respond.
 - h. Consider my financial circumstances regarding property taxes, and allow time for payment consistent with my ability to pay.
 - 10) On 3/27/2026, Father filed an Income and Expense Declaration.

11) On 4/2/2026, Mother filed a Reply Declaration reiterating her original requests and adding additional reimbursement claims related to the children's expenses.

12) On 4/2/2026, Mother's forensic accountant filed a declaration stating that she has not been provided with any of Father's business records concerning the year 2024 or any period in 2025 despite her many requests.

13) On 4/2/2026, Mother filed an updated declaration adding additional reimbursement requests related to the children's expenses, stating she received a delinquency notice for the Emeryville mortgage payment, stating Father is in violation of the ATROs because he downgraded the family's health insurance policy from a Silver to a Bronze plan, and filed a misleading Income and Expense Declaration which fails to disclose his business ownership income.

14) On 6/16/2026, Father's attorney Christine Tour-Sarkissian filed a Request to Reschedule the 6/23/2026 hearing. The Court notes that Ms. Tour-Sarkissian filed a Substitution of Attorney entering this case as Father's attorney of record on 5/6/2026. Ms. Tour-Sarkissian states that despite emails to Father's former attorney over the course of several weeks, she has not yet obtained Father's file and she is unable to substantively respond to Mother's claims before 6/23/2026.

15) On 6/16/2026, Mother filed a Responsive Declaration asking the Court to deny Father's request to continue the 6/23/2026 hearing.

B. Findings and Order

1) Father's request for a continuance of the 6/23/2026 hearing is denied.

2) As the parties did not follow through with Paragraph 13 of the Stipulation and Order filed 7/24/2025, the Court makes the following updated orders. No later than 8/30/2026, the parties shall participate in a settlement meeting in person for at least 3 hours to attempt to resolve all remaining issues. The parties shall cooperate to exchange any requested necessary financial information needed for settlement. The parties shall exchange global settlement proposals at least 10 days prior to the in-person meeting. If no agreement is reached at the in-person settlement meeting, the parties shall contact the Court and the Court will attempt to schedule a Judicial Settlement Conference with Judge Luna. If Judge Luna or another mutually agreeable judge is not available to perform the Judicial Settlement Conference, the parties shall meet and confer and

1 select a mediator and the parties shall each be responsible for 50% of the mediator's fees
2 regardless of the result of mediation. If no agreement is reached in mediation, the parties may
3 proceed through litigation through the Court.

- 4 3) The Court's jurisdiction to adjudicate all reimbursement claims set forth in Mother's 2/2/2026
5 Request for Order and related moving papers is reserved. In the event the parties are unable to
6 reach a global settlement agreement through the alternative dispute resolution process outlined
7 above, these claims shall be addressed at trial.
- 8 4) Regarding Mother's request that the parties exchange updated disclosures and provide financial
9 information, the parties shall comply with Family Code section 2102 and all statutory
10 requirements regarding Final Declarations of Disclosure.
- 11 5) Father's request that the payment deadlines for support be adjusted to match his pay periods of
12 the 5th and 15th of each month is hereby granted effective immediately.
- 13 6) The Stipulation and Order filed 7/24/2025 requires support to be paid by automatic recurring
14 payments. However, Father states Bank of America does not allow automatic transfers to
15 Mother's account and Zelle imposes a daily limit of \$3,500. The parties shall meet and confer
16 regarding a mutually acceptable payment method no later than 6/30/2026. The Court's
17 jurisdiction to make additional orders regarding this issue is reserved and shall be addressed at a
18 future hearing date of **Tuesday, 11/10/2026 at 9:00 AM in Dept. 404** in the event the parties are
19 unable to reach an agreement regarding this issue.
- 20 7) Father shall make immediate attempts to negotiate a payment plan with the County Tax Collector
21 or mortgage lender for the San Francisco and Emeryville properties. If a mutually acceptable
22 payment plan is devised, Father shall provide written documentation to Mother's attorney of the
23 plan along with documentation showing each timely payment in accordance with the payment
24 plan. If Father is unable to negotiate a payment plan by 7/31/2026, he shall bring the San
25 Francisco and Emeryville property taxes and mortgages current by 7/31/2026.
- 26 8) The Court's jurisdiction to adjudicate Mother's request for \$100,000 in attorney's fees and costs
27 and \$20,000 for Mother's forensic accountant fees and costs is reserved. Based upon the
28 Stipulation and Order filed 7/24/2025, the Court finds that the parties intended to enter settlement
29 discussions without an additional fee award. The Court sets a future hearing date of **Tuesday,**

1 **11/10/2026 at 9:00 AM in Dept. 404** to hear Mother's request for fees and costs in the event the
2 parties do not reach a global settlement. At least 20 calendar days prior to the next hearing date,
3 Mother and her attorney shall file update declarations (not to exceed 5 pages in length, not
4 including exhibits) and an updated Income and Expense Declaration. At least 10 calendar days
5 prior to the next hearing date, Father shall file an update declaration (not to exceed 5 pages in
6 length, not including exhibits) and an updated Income and Expense Declaration.

7 9) The Court finds good cause to award to Mother \$7,500 under Family Code section 271 for fees
8 and costs required for Mother to bring the instant Request for Order. The Court finds that Father
9 has engaged in conduct which has caused unnecessary delays and necessitated Mother to bring
10 the instant Request for Order. The Court finds that Father's claim that delays were caused by his
11 former attorney is not a valid defense.

12 10) Mother's attorney shall prepare the Findings and Order After Hearing.

13 11) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
14 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
15 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
16 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
17 proposed order after hearing directly to the court. Failure to submit the order after hearing within
18 10 days may allow the other party to prepare a proposed order and submit it to the court in
19 accordance with CA Rules of Court, Rule 5.125(d).
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